

16.	23CV0518	MICHELLE LE ET AL VS. RAVITESH RAM ET AL
MOTION TO COMPEL DEPOSITION ATTENDANCE / MOTION FOR SUMMARY JUDGMENT		

Before the Court are two motions: 1) Motion to Compel the Attendance of Non-Party Witness Gurjot Johl at Deposition or, in the Alternative, at Trial, and For Issuance of a Warrant for His Arrest Upon Failure to Appear; and 2) Motion for Summary Judgment.

MOTION TO COMPEL

Plaintiffs, Michelle Le and Tuan Pham (collectively “Plaintiffs”), move to compel the attendance of non-party witness, Gurjot Johl (“Mr. Johl”), at deposition or, in the alternative, at trial, and for an order authorizing a warrant for his arrest if he fails to voluntarily appear as ordered. An Opposition was filed by Defendant, Ravitesh Ram (“Defendant”), on September 23, 2026.

Plaintiffs assert Mr. Johl is a percipient witness whose testimony is material to the central dispute of the case. Mr. Johl is an investor in the Subject Property, communicated with the Parties about the funds and their repayment, and acknowledged loaning money to Defendant in connection with the same property – communications of which Defendant is attempting to exclude as evidence on hearsay grounds. Mr. Johl was noticed for depositions in March, April, and August 2026. Despite being personally served for the August 17, 2026, deposition, Mr. Johl failed to appear or reschedule.

Plaintiffs propose taking Mr. Johl’s deposition on October 6, 2026, so that his testimony can be transcribed and used at trial on October 13, 2026. In the alternative, Plaintiffs request the Court order Mr. Johl to appear and testify at trial and to comply with a trial subpoena served upon him. Should Mr. Johl fail to appear at the deposition or trial, Plaintiffs request the Order expressly authorize issuance of such a warrant. Lastly, Plaintiffs request the Court confirm that Mr. Johl’s disobedience of its order may also be punished as contempt and will subject him to the statutory forfeiture and damages. Alternatively, the Court in its discretion could deem the text messages between Mr. Johl and Plaintiff Michelle Le, Loc Le, or Defendant authenticated and admit them over Defendant’s hearsay challenges.

Defendant argues Plaintiffs’ request falls outside of the discovery cutoff, which was September 14, 2026. Although Plaintiffs obtained an order shortening time, they did not ask for leave to reopen discovery and failed to include a meet and confer declaration.

The Court finds Mr. Johl was properly served the Deposition Subpoena for Personal Appearance and failed to appear for his deposition on August 17, 2026. Plaintiffs do not seek leave to reopen discovery but rather to enforce the deposition subpoena which was properly noticed prior to the cutoff. The Court grants Plaintiffs’ request to compel Mr. Johl to appear for his deposition.

A review hearing is set for November 20, 2026, to determine compliance with Mr. Johl's deposition. Plaintiffs are ordered to file a status report with the Court regarding his compliance by November 13, 2026. The Court reserves jurisdiction over Plaintiffs' requests to punish Mr. Johl for contempt for his failure to appear at the upcoming deposition, to authorize the issuance of a warrant, and to deem the text messages between Mr. Johl and Plaintiff Michelle Le, Loc Le, or Defendant authenticated and admit them over Defendant's hearsay challenges should Mr. Johl fail to appear for his deposition.

The Court on its own motion continues the trial and corresponding pretrial hearings. The Parties are ordered to appear to set trial and pretrial dates.

MOTION FOR SUMMARY JUDGMENT

On the Court's own motion, Defendant's Motion for Summary Judgment is continued to December 18, 2026, to allow for the deposition of Mr. Johl. Supplemental pleadings may be filed by December 10, 2026.

TENTATIVE RULING #16:

PLAINTIFFS' REQUEST TO COMPEL MR. JOHL'S APPEARANCE FOR HIS DEPOSITION IS GRANTED. A REVIEW HEARING IS SET FOR NOVEMBER 20, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. PLAINTIFFS ARE ORDERED TO FILE A STATUS REPORT BY NOVEMBER 13, 2026. THE COURT RESERVES JURISDICTION OVER PLAINTIFFS' REQUEST REGARDING CONTEMPT, AUTHORIZING AN ARREST WARRANT, AND DEEMING THE TEXT MESSAGES AUTHENTICATED AND ADMITTED OVER HEARSAY CHALLENGES.

THE COURT ON ITS OWN MOTION CONTINUES THE TRIAL AND CORRESPONDING PRETRIAL HEARINGS. THE PARTIES ARE ORDERED TO APPEAR ON SEPTEMBER 28, 2026, AT 8:30 A.M. IN DEPARTMENT NINE TO SET TRIAL AND PRETRIAL DATES.

DEFENDANT'S MOTION FOR SUMMARY JUDGMENT IS CONTINUED TO DECEMBER 18, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. SUPPLEMENTAL PLEADINGS MAY BE FILED BY DECEMBER 10, 2026.